

// kade to operating co · upstream of every sublicense

Head Licence Deed

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IP owner → operating company Draft v0.1 — For legal review only. Not for execution.

*[CONTINGENT: to be executed **if/when Body Recode Pty Ltd is incorporated** (see cover note threshold question).
Until then, Kade Dunstone as sole trader is both owner and operator and no head licence is required.]*

This deed sits **above** the partner-facing documents. It is what gives the operating company the right to sublicense the IP to Collective Partners while Kade retains ownership.

The chain: Kade Dunstone (owns IP) → **this Head Licence** → Body Recode Pty Ltd (operates + may sublicense) → `PARTNER_IP_SUBLICENCE_DEED` (sublicense) → Collective Partner.

PARTIES

Kade Robert Dunstone of [Brisbane address — to be confirmed], Queensland, Australia (**Owner**)

Body Recode Pty Ltd ACN [___] of [Brisbane address — to be confirmed], Queensland, Australia (**Company**)

01 BACKGROUND

A. The Owner owns the Body Recode intellectual property — the Layer 1 Engine and Doctrine, the Layer 2 Platform, and the Body Recode Marks (the **Body Recode IP**, as described in Schedule 1 and in the IP Licence Deed).

B. The Company operates, or will operate, the Body Recode business and the Collective.

C. The Owner wishes to license the Body Recode IP to the Company, including the right to sublicense it to Collective Partners, while retaining full ownership. This deed records those terms.

02 OPERATIVE PROVISIONS

03 1. DEFINITIONS

Body Recode IP means all Layer 1 IP, Layer 2 IP, and Body Recode Marks, as those terms are defined in the IP Licence Deed, together with all Improvements.

the Collective means the programme under which the Company sublicenses a branded instance of the Platform to allied coaches. There is no limit on the number of partners. Early partners may be offered a locked-for-life founding rate, which is a pricing term only and confers no exclusivity.

Improvements means all improvements, modifications, extensions, and derivative works of the Body Recode IP, however arising.

Sublicence means a licence granted by the Company to a third party (including a Collective Partner) of rights the Company holds under this deed.

04 2. GRANT OF LICENCE

2.1 The Owner grants the Company a licence for the Term to use, reproduce, host, commercialise, and otherwise exploit the Body Recode IP for the purpose of operating the Body Recode business and the Collective, **including the right to grant Sublicences**.

2.2 **Exclusivity.** *[DECISION — LEGAL: sole/exclusive within the Body Recode field of use (recommended: the Company is the single commercial vehicle for Body Recode, while the Owner retains ownership and the right to license the IP into the Owner's other ventures and brands, e.g. Precision Coaching / Arete), OR non-exclusive. Recommend **sole/exclusive, field-limited to Body Recode.**]*

2.3 The Company may grant Sublicences only on terms no less protective of the Body Recode IP than this deed. Every Sublicence terminates automatically on termination of this deed.

05 3. OWNERSHIP RETAINED

3.1 All right, title, and interest in the Body Recode IP remains with the Owner. The Company acquires no ownership interest by this deed — only the licensed rights in clause 2.

3.2 The Company will not assign, charge, or otherwise deal with the Body Recode IP except as expressly permitted.

06 4. IMPROVEMENTS

4.1 All Improvements made by or for the Company vest in, and are assigned to, the Owner on creation, so that ownership of the Body Recode IP stays consolidated in the Owner. The Owner licenses those Improvements back to the Company under clause 2. *[DECISION — confirm this consolidation is intended.]*

07 5. CONSIDERATION

5.1 In consideration for the licence, the Company will pay the Owner a licence fee / royalty as agreed between the Parties. *[DECISION — LEGAL + ACCOUNTANT: structure and amount. Typically a licence fee or royalty from Company to Owner, arm's-length, tax-effective. Confirm transfer-pricing reasonableness and any Division 7A implications.]*

08 6. CONFIDENTIALITY

6.1 The Company will protect the trade secrets within the Body Recode IP (including the Engine and Doctrine) with the same rigour the Owner would, and will bind its personnel and sublicensees accordingly.

09 7. WARRANTIES

7.1 The Owner warrants that it owns the Body Recode IP and has the right to grant this licence.

7.2 To the maximum extent permitted by law, no other warranties are given. The IP is licensed on an "as is" basis between these related Parties.

10 8. TERM AND TERMINATION

8.1 This deed commences on the date the Company is incorporated and this deed is executed, and continues while the Company operates the Body Recode business (**Term**).

8.2 The Owner may terminate this deed if the Company is subject to an insolvency event or ceases to operate the Body Recode business.

8.3 On termination: the Company's licence and all Sublicences end (subject to any partner wind-down already contracted), the Company ceases all use of the Body Recode IP, and ownership remains with the Owner throughout.

11 9. GENERAL

9.1 **Governing law.** Queensland, Australia. Exclusive jurisdiction of the Queensland courts.

9.2 **Nature.** Executed as a deed (12-year limitation period).

9.3 **Assignment.** The Company may not assign or sublicense except as expressly permitted. The Owner may deal freely with its ownership of the Body Recode IP, subject to the Company's licensed rights.

9.4 **Entire agreement, amendment, severability, counterparts.** Standard.

12 EXECUTION

Executed as a deed

Kade Dunstone (Owner)

Signature: _____ Date: _____

Witness: Name: _____ Signature: _____

Body Recode Pty Ltd ACN [___] (Company)

Executed in accordance with section 127 of the Corporations Act 2001 (Cth):

Director signature: _____ Name: Kade Dunstone Date: _____

[NOTE: if the Company has a sole director/secretary, a single-director execution applies. If Kade signs on both sides (as Owner and as sole director of the Company), the lawyer should confirm the related-party execution formalities and any conflict-of-interest ratification needed.]

13 SCHEDULE 1 — BODY RECODE IP

As defined in the IP Licence Deed (`PARTNER_IP_SUBLICENCE_DEED_v0.1.md`) Schedule 1: Layer 1 IP (Engine + Doctrine), Layer 2 IP (Platform + infrastructure + modality packs), and the Body Recode Marks (Schedule 2 of that deed). This deed licenses the whole of it to the Company.

END OF HEAD LICENCE DEED — v0.1 DRAFT

Related: `PARTNER_IP_SUBLICENCE_DEED_v0.1.md` (the partner sublicense), `COVER_NOTE_TO_LEGAL.md` , `DECISIONS_NEEDED.md`